

Preparing an Estate or Inherited Property

Start with authority, ownership records, and one clear decision process before the property reaches market.



THE SHORT ANSWER

Before anyone talks price, confirm who can act and gather the records that explain ownership.

01 WHO CAN ACT

- ☐ Name the executor, administrator, trustee, or current owners
- ☐ Confirm who has authority to sign and whether anyone else must consent
- ☐ Choose one family contact for decisions, records, and updates

02 OWNERSHIP FILE

- ☐ Recorded deed and full legal description
- ☐ Current tax statement and any title policy or commitment
- ☐ Will, trust, court orders, or letters issued by the court, if applicable
- ☐ Liens, leases, options, or agreements affecting the property

03 PROPERTY FILE

- ☐ Survey, plat, access, and easement documents
- ☐ Agricultural valuation, lease, well, septic, and improvement records
- ☐ Current photos plus a list of items that stay or go

PROBATE OR TRUST CONSIDERATIONS

Authority depends on the deed, estate plan, court orders, and the type of administration. A family agreement alone may not establish who can sell. Ask a Texas attorney and the title company to confirm authority before signing a listing or contract.

YOUR NEXT FOUR MOVES

1

Identify the authorized decision-maker

2

Gather the ownership and property records

3

Choose the attorney and title contacts

4

Schedule a J4LP property review

WHEN YOU ARE READY

Send what you have. We will help organize the next conversation.

Sources: Texas Estates Code, Chapters 356 and 401 / Texas State Law Library Probate Guide

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